

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0001920

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: IVAN ARAUJO

vs.

DEFENDANT: CITY AND COUNTY OF
SAN FRANCISCO, A PUBLIC ENTITY, ET
AL

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff Ivan Araujo filed a motion on April 28, 2026, to compel further responses for Request for Production of Documents (Set Four) from Defendant Golden Gate Bridge Highway and Transportation District. Defendants California Dept. and Transportation and GGBH filed opposition briefs on July 14. Plaintiff filed its reply brief on July 20.

Pursuant to Marin County Rule, Civil 2.13B, on July 20, 2026, James Sell, Esq. was appointed to preside as Discovery Facilitator to assist the parties to resolve Plaintiff's Motion to Compel. Given the late appointment of the Discovery Facilitator, the Court is not surprised to have not received a Declaration of Non-Resolution from either party MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing but also requires that "[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party's contentions.***" (MCR Civ 2.13H(1), emphasis added.)

The matters are continued to the next motion hearing date of October 2, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by

order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004154

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: KARLA RIVERA

NATURE OF PROCEEDINGS: MOTION – OTHER; VACATE THE CONDITIONAL
DISMISSAL AND FOR ENTRY OF JUDGMENT

RULING

Plaintiff American Express filed on April 29, 2026, a motion , to file a motion pursuant to Code of Civil Procedure section 664.6 ("CCP 664.6") for the Court to vacate the conditional dismissal and enter a judgment in favor of Plaintiff and against Defendant Karla Rivera a/k/a Karla K Rivera ("Defendant"), on the grounds that Defendant has failed to make payments consistent with the settlement agreement and that this Court has jurisdiction to enter a judgment consistent with the agreement between Plaintiff and Defendant under CCP 664.6.

Defendant has not filed a response, nor was an opposition to the motion filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) Plaintiff's motion is therefore GRANTED in it's entirety.

Plaintiff to lodge the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.